

Op-Ed

By: Michael Kenyon

We have all seen the dramatic scene in a police procedural, “a witness points a trembling finger at a suspect behind a glass partition and declares, “That is him. That is the guy.” It makes for a great television moment, but in the real world of legal policy and forensic psychology, this moment is often the most dangerous part of a criminal investigation. As someone who has spent years studying how communication and perception shape our reality, from the high-pressure environment of a busy restaurant rush to the complex dynamics of my own interpersonal relationships, I have learned that what we think we see is often a construction of the environment around us. When it comes to eyewitness identification, the stakes are not just a messed-up order or a misunderstanding between friends; they are the difference between justice and a life, and between a wrongful conviction and its shattering.

The issue is timely and urgent. In January 2026, Tommy Lee Walker was posthumously declared innocent in Texas, 70 years after a conviction based on unreliable eyewitness identification. Across the country, state legislatures are finally debating reforms to law enforcement policies. While states like Indiana have recently passed mandates, such as Senate Bill 141 (2025), to modernize these procedures, many other jurisdictions still rely on simultaneous lineups, in which a witness views a group of people at once. To most people, this is the most efficient way to do it. However, psychological research suggests that this method encourages relative judgment, in which a witness picks the person who looks *most* like the perpetrator among the others, rather than relying on an actual memory match.

The psychological literature on this topic is clear: the way we frame a situation dictates the outcome. According to Costanzo and Krauss (2021) in *Forensic and Legal Psychology*,

eyewitness misidentification is the single greatest cause of wrongful convictions overturned by DNA evidence, factoring into nearly 69% of these cases. To fix this, we need to push for two specific, evidence-based changes: double-blind administration and sequential presentation.

In my own professional experience, I have seen how easily a leader's expectations or even a small nod can influence how someone else performs. The same thing happens in an interrogation room. If the officer administering a lineup knows who the suspect is, they might provide subtle, even unconscious, verbal or nonverbal cues, a nod, a pause, or a confirming message that steers the witness toward the suspect. Research by Wells and Quinlivan (2009) shows that this kind of suggestive administration can drastically inflate a witness's confidence in a mistaken identification. A double-blind procedure, where neither the officer nor the witness knows who the suspect is, removes this pressure. This ensures the identification is based solely on the witness's actual memory, not the officer's influence.

We need to move toward sequential lineups, in which witnesses view one person at a time and must decide before seeing the next. This forces what psychologists call absolute judgment. Sequential lineups force the brain to compare the individual right in front of them to their memory of the event, rather than just comparing the people in the lineup to each other.

A meta-analysis by Steblay, Dysart, and Wells (2011) showed that while sequential lineups might result in slightly fewer identifications overall, they significantly reduce the rate of innocent fillers. Sequential procedures help mitigate errors by preventing the witness from feeling pressured to pick the best match in the group.

Ohio needs to follow the lead of states like Indiana and mandate sequential, double-masked lineups as a standard requirement for law enforcement. We also need to require that a

confidence statement be recorded immediately after an identification is made, before any feedback can contaminate the witness's certainty.

Critics argue these methods might lead to fewer identifications. However, the research shows that the identifications we lose are primarily the false ones. In our legal system, it is supposed to be better for ten guilty men to go free than for one innocent person to suffer, so the choice seems clear to me. We cannot control the chaos of a crime scene, but we can control the communication climate of the police station. It is finally time for our policy to catch up to our psychology.

References

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